

NO WORK PERFORMED AFFIDAVIT

(ATTACH TO INVOICE)

OMO# _____

STATE OF NEW YORK }
 } SS:
COUNTY OF _____ }

_____, being duly sworn, deposes and says:

1. I am a contractor hired by NYC Department of Housing Preservation and Development ("HPD") to perform emergency repairs.
2. I was directed by HPD in the Confirmation of Award for Open Market Order ("OMO") # _____ to go to the building located at _____ in response to an emergency condition.
3. I could NOT perform the repair work and am entitled to a service charge of \$ _____.

I could NOT perform the repair work as directed on that day for the following reason(s): Answer 4, 5, 6 OR 7

4. The area where work was required to be performed was **physically inaccessible**. The inaccessibility was due to:

- a. I made two attempts not less than 72 hours of each other to gain access on _____ and _____. I attempted to contact the tenant by telephone on _____ and _____.
5. When I arrived at the work site on _____ I found the **work described in the OMO had been completed by others.**
6. When I arrived at the work site on _____ I found the **work described in the OMO being performed by others.**
 - a. The person/contractor performing work gave his/her name as: _____.
 - b. The person performing the work refused to give his/her name.

OMO # _____

7. When I arrived at the work site on _____, I was denied access by the tenant, the owner, the owner's employee or agent or a person who claimed to be in control of the building.

a. The individual who prevented me from completing the work:

i. Stated his/her name as: _____ and relationship to building _____

b. Description of individual _____ (e.g. male/female, tall/short, dark light hair)

c. Telephone number of the individual _____

Signature

Type or Print Name

Sworn to me this ____ day of _____, 2026



Notary Public

CHETANPREET MALHI
Notary Public - State of New York
NO. 01MA0022379
Qualified in Queens County
My Commission Expires June 13, 2029

Email: UAC525@GMAIL.COM

Invoice #: _____

Approved Increase/Decrease: ☐ Yes ☐ No

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